H.B. 11, 2025.]

POLICE AMENDMENT BILL, 2025

EXPLANATORY MEMORANDUM

The purpose of this Bill is to amend the Police Act [*Chapter 11:10*], to achieve the following principal objectives:

- section 221(1) of the Constitution provides that the Commissioner-General of Police is to be appointed by the President after consultation with the Minister responsible for the police;
- to align the tenure of office of the Commissioner-General of Police with section 221(2) of the constitution;
- the functions of the Commissioner-General to be aligned with section 221(4) of the Constitution;
- The Police Act to be aligned with sections 243(2), 255(2) and 259(11) of the Constitution;
- section 223(1)(a) gives power to appoint qualified and competent persons to hold posts or ranks in the Police Service;
- repeal of section 32 of the Police Act which gives right of trial before a Magistrate Court;
- aligning provisions relating to appointment, promotion, discharge, retirement and conditions of service of members of Police Service with provisions of the Constitution.

In brief therefore, the Bill amends various provisions of the Act so that it complies with the Constitution.

In more detail the individual clauses of the Bill provide as follows:

Clause 1

This clause sets out the Bill's short title.

Clause 2

This clause amends the definition of the Commissioner-General and replaces the term "Police Force" with the term "Police Service". It also includes a definition of "basic training", which term is to be mentioned in section 50 (see clause 20).

Clause 3

This clause replaces the reference to "Police Force" in section 3 of the principal Act by ""Police Service.

Clause 4

This clause sets out the appointment of the Commissioner-General as provided in the Constitution of Zimbabwe. It also provides for the appointment of his or her deputies, and the delegation of functions to them

Clause 5

This clause sets out the terms and conditions of service of the Commissioner-General as provided for in the Constitution. The Commissioner-General shall be appointed for a period of five years which may be renewed once.

Clause 6

This clause places the duty on the Commissioner-General of Police to act in accordance with any written policy directives given by the Minister responsible for the police.

Clause 7

This clause provides for the standing orders to be formulated by the Police Service Commission on the advice of the Commissioner-General of Police with the approval of the Minister.

Clause 8

This clause provides for the Commissioner-General to comply with the directions of the Prosecutor-General.

Clause 9

This clause provides that the Commissioner-General must comply with any directives given to him or her by Zimbabwe Human Rights Commission in terms of section 243(2) of the Constitution and directives given by Zimbabwe Anti-Corruption Commission in terms of section 255(2) of the Constitution.

Clause 10

This clause provides that the Police Service Commission may promote non-commissioned officers.

Clause 11

This clause sets out that the Police Service Commission may reappoint to the Regular Force a person who has retired in terms of this Act.

Clause 12

The effect of this clause amending section 19 of the principle Act is to widen the scope of the duty of a police officer to serve execute a "summons, warrant or other process" to a "summons, subpoena, warrant or other criminal or civil process (the service of which is by any law required to be, or is capable of being, effected by a member of the Police Service)" .

Clause 13

This clause sets out that the Police Service Commission may discharge a Regular Force member, other than an officer, on the grounds of continued ill-health or some infirmity of body or mind.

Clause 14

This clause stipulates that the Commissioner-General may discharge a Regular Force member with the consent of the Police Service Commission.

Clause 15

This clause incorporates into the principal Act the provisions of Statutory Instrument 201 of 2024, and validates anything done in terms of that Statutory Instrument between the date of its lapse and the date of commencement of this Bill.

Clause 17

This clause repeals section 32 of the Act which gives right to trial before a Magistrates Court. All disciplinary trials even of commissioned officers should be conducted by a board of officers only.

Clause 19

This clause repeals section 46 of the Act since no trial will be done by a Magistrate.

Clause 20

This clause sets out that the Police Service Commission may discharge, demote and reprimand a member, other than an officer, who is convicted of any offence and sentenced to imprisonment without the option of a fine.

Clause 21

This clause provides for an appeal to the Police Service Commission.

Clause 22

This clause provides for the delegation of functions of the Police Service Commission to the Commissioner-General subject to section 321(2) of the Constitution.

Clauses 23 and 24

These clauses insert new sections in the principal Act to protect the use by the Police Service of their insignia to designate items of Police Service property, and to prohibit the unauthorised wearing of the Police Service's uniforms, badges, buttons, braid and insignia.

Clause 27

This clause provides for the alignment of section 72 of the principal Act to section 223(2) of the Constitution.

Clause 28

This clause incorporates into the Prisons and Correctional Service Act the provisions of Statutory Instrument 201 of 2024, and validates anything done in terms of that Statutory Instrument between the date of its lapse and the date of commencement of this Bill.

Clauses 29 and 30

These clauses correct errors in section 22A of the Criminal Law Code and sections 4 and 9 of Private Voluntary Organizations Act [*Chapter 17:05*].

BILL

An Act to amend the Police Act [*Chapter 11:10*]; to substitute section 11 of the Prisons and Correctional Service Act [*Chapter 7:21*]; to amend section 22A of the Criminal Law Code; to amend sections 4 and 9 of the Private Voluntary Organisations Act [*Chapter 17:05*]; and to provide for matters connected with or incidental to the foregoing.

WHEREAS sections 207(2), 219, 221, 222 and 223 of the Constitution provide that:—

"207 Security Services

"(1) …

(2) The security services are subject to the authority of this Constitution, the President and Cabinet and are subject to parliamentary oversight.

(3)…

219 Police Service and its functions

(1) There is a Police Service which is responsible for—

(a) detecting, investigating and preventing crime;

(b) preserving the internal security of Zimbabwe;

(c) protecting and securing the lives and property of the people;

(d) maintaining law and order; and

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(e) upholding this Constitution and enforcing the law without fear or favour…

(2) The Police Service must exercise its functions in co-operation with—

(a) any intelligence service that may be established by law;

(b) any body that may be established by law for the purpose of detecting, investigating or preventing particular classes of offences; and

(c) regional and international bodies formed to combat crime.

(3) The Police Service must be non-partisan, national in character, patriotic, professional and subordinate to the civilian authority as established by this Constitution.

(4) An Act of Parliament must provide for the organisation, structure, management, regulation, discipline and, subject to section 223, the conditions of service of members of the Police Service.

221 Commissioner-General of Police

(1) The Police Service is under the command of a Commissioner-General of Police appointed by the President after consultation with the Minister responsible for the police.

(2) The Commissioner-General of Police is appointed for a five-year term which may be renewed once.

(3) A person who has served as Commissioner-General of Police may not be appointed to the command of any other security service.

(4) The Commissioner-General of Police must exercise his or her command in accordance with any general written policy directives given by the Minister responsible for the police acting under the authority of the President.

222 Establishment and composition of Police Service Commission

(1) There is a Police Service Commission consisting of a chairperson, who must be the chairperson of the Civil Service Commission, and a minimum of two and a maximum of six other members appointed by the President.

(2) Members of the Police Service Commission must be chosen for their knowledge of or experience in the maintenance of law and order, administration, or their professional qualifications or their general suitability for appointment, and—

(a) at least half of them must be persons who are not and have not been members of the Police Service;

(b) at least one of them must have held a senior rank in the Police Service for one or more periods amounting to at least five years.

223 Functions of Police Service Commission

(1) The Police Service Commission has the following functions—

(a) to employ qualified and competent persons to hold posts or ranks in the Police Service;

(b) to fix and regulate conditions of service, including salaries,

(c) allowances and other benefits, of members of the Police Service;

(d) to ensure the general well-being and good administration of the Police Service and its maintenance in a high state of efficiency;

(e) to ensure that members of the Police Service comply with section 208;

(f) to foster harmony and understanding between the Police Service and civilians;

(g) to advise the President and the Minister on any matter relating to the Police Service; and

(h) to exercise any other function conferred or imposed on the Commission by this Constitution or an Act of Parliament.

(2) The Police Service Commission, with the approval of the Minister responsible for the Police Service, may make regulations for any of the purposes set out in subsection (1).

(3) In fixing the salaries, allowances and other benefits of members of the Police Service, the Police Service Commission must act with the approval of the President given on the recommendation of the Minister responsible for finance and after consultation with the Minister responsible for the Police Service.".

NOW, THEREFORE, be it enacted by the Parliament and the President of Zimbabwe as follows:—

1 Short title

This Act may be cited as the Police Amendment Act, 2025.

2 Amendment of section 2 of Cap. 11:10

Section 2 ("Interpretation") of the Police Act [*Chapter 11:10*] (hereinafter called the "principal Act") is amended—

(a) by the insertion of the following definitions—

""basic training" means the training that every person on first being appointed to the Police Service must undergo as a condition of his or her appointment;';

"Commission" means the Police Service Commission established in terms of section 222 of the Constitution;';

(b) by the repeal of "Commissioner" and "Police Force" and substitution of—

""Commissioner-General", means the person in command of the police service appointed in terms of section 221 of the Constitution;

"Police Service" means the Police Service established in terms of section 219 of the Constitution;".

3 New section substituted for section 3 of Cap 11:10

Section 3 of the principal Act is repealed and substituted by—

"3 Name of Police Service

The Police Service shall be known as the Zimbabwe Republic Police.

4 New section substituted for section 5 of Cap 11:10

Section 5 of the principal Act is repealed and substituted by—

"5 Appointment of the Commissioner-General; Deputy Commissioner-Generals; and delegation of functions by Commissioner-General

(1) The President shall appoint the Commissioner-General after consultation with the Minister responsible for the Police Service."

(2) There shall be appointed one or more Deputy Commissioner-Generals, as may be required to assist the Commissioner-General.".

(3) Subject to any orders or directions of the Commissioner-General, anything that may be done, ordered or performed by the Commissioner-

General may be done, ordered or performed by a Deputy Commissioner-General.".

5 Amendment of section 6 of Cap 11:10

Section 6 of the principal Act is repealed and substituted by—

"6 Terms and conditions of service of Commissioner-General

(1) The Commissioner-General shall be appointed for a period of five years which may be renewed once.

(2) The Commissioner-General may, with the consent of the President, whatever the length of his or her pensionable service or age, retire before completing a period of five years in that appointment.

(3) Subject to this Act, the terms and conditions of service of the Commissioner-General shall be as fixed by the President from time to time.".

6 Amendment of section 8 of Cap 11:10

Section 8 ("Powers and Functions of the Commissioner-General") of the principal Act is amended by the insertion of the following subsections, the existing section becoming subsection (1)—

"(2) The Minister, acting under the authority of the President, may in writing, issue policy directives to the Commissioner-General.

(3) Upon receiving policy directives from the Minister, the Commissioner-General shall take all necessary steps to comply with such directives.".

7 Amendment of section 9 of Cap 11:10

Section 9 of the principal Act is repealed and substituted by—

"9 Standing Orders

Subject to this Act, in consultation with the Police Service Commission and with the approval of the Minister, the Commissioner-General may make Standing Orders with respect to the discipline, regulation and orderly conduct of the affairs of the Police Service.".

8 Amendment of section 12 of Cap 11:10

Section 12 ("Compliance with directives of Attorney-General") of the principal Act is amended—

(a) by the deletion of "Attorney-General" and the substitution of "Prosecutor-General".

(b) by the deletion of "subsection (4a) of section 76" and the substitution of "subsection (11) of section 259".

9 New section inserted in Cap 11:10

The principal Act is amended by the insertion after section 12 of the following section—

"12A Commissioner-General to comply with directives from certain Commissions

The Commissioner-General must comply with any directive given to him or her by—

(a) the Zimbabwe Human Rights Commission in terms of section 243(2) of the Constitution;

(b) the Zimbabwe Anti-Corruption Commission in terms of section 255(2) of the Constitution.".

10 Amendment of section 16 of Cap 11:10

Section 16 ("Promotion of non-commissioned members") of the principal Act is amended by the repeal of subsection (1) and the substitution of—

"(1) Subject to subsection (2), the Commissioner-General, with the approval of the Police Service Commission, may promote any member to any rank other than a commissioned rank.".

11 Amendment of section 18 of Cap 11:10

Section 18 ("Reappointments and acting ranks") of the principal Act is amended by the repeal of subsection (1) and the substitution of—

"(1) The Police Service Commission, on the advice of the Commissioner-General given after consultation with the Minister, may reappoint to the Regular Service for a specified period or specified periods a person who has retired in terms of this Act, and in that event, the person concerned shall be reappointed with such rank, not being higher than the rank held by him or her immediately before he or she so retired, as may be specified by the Commissioner-General.".

12 Amendment of section 19 of Cap 11:10

Section 19 ("Powers and duties of members") of the principal Act is amended—

(a) by the repeal of subsection (2) and the substitution of—

"(2) Every regular force member shall be competent to serve or execute any summons, subpoena, warrant or other criminal or civil process (the service of which is by any law required to be, or is capable of being, effected by a member of the Police Service) directed to him or her and every such summons, subpoena, warrant or process directed to any Regular Force member may be served or executed by any other Regular Force member and every such last-mentioned member shall have the same rights, powers and authority for and in the service or execution of such summons, subpoena, warrant or process as if it had been originally directed to him or her.".

(b) by the repeal of subsection (3).

13 Amendment of section 20 of Cap 11:10

Section 20 ("Discharge on medical grounds") of the principal Act is amended—

(a) by the repeal of subsection (1) and the substitution of—

"(1) Subject to subsection (2), the Commission may at any time (upon referral of the case to it in writing by the Commissioner-General) discharge a Regular Force member, other than an officer, on the grounds of continued ill-health or some infirmity of body or mind which prevents the Regular Force member from efficiently performing his or her duties.";

(b) in subsection (2) by the deletion of "Commissioner" and the substitution of "Commission";

(c) in subsection (3) by the deletion of "Commissioner" and the substitution of "Commission".

14 Amendment of section 21 of Cap 11:10

Section 21 ("Discharge on redundancy") of the principal Act is amended in subsection (1) by deletion of "Minister" and the substitution of "Police Service Commission.".

15 Amendment of section 22 of Cap 11:10

(1) Section 22 ("Retirement") of the principal Act is amended—

(a) in subsection (1) by the repeal of paragraph (b) and the substitution of—

"(b) if he or she does not exercise his or her right to retire in terms of paragraph (a), on pension, when his or her pensionable service amounts to thirty years or more:

Provided that this paragraph does not apply to any member appointed to the Police Service before 1st January, 2025 (hereinafter referred to as "the effective date"), in which event he or she may exercise his or her right to retire in terms of paragraph (a), on pension, when his or her pensionable service amounts to twenty years or more.";

(b) by the repeal of subsections (2), (3) and (4), and the substitution of—

"(2) The Commissioner-General may, on notice of twelve months, in writing, require a Regular Force member whose pensionable service at the end of such notice will amount to thirty years or more, to retire from the Regular Service:

Provided that a Regular Service member who has been given notice in terms of this subsection may retire at any time before the expiration of that notice on giving to the Commissioner-General, in writing, three months' notice of his or her intention to do so or such lesser period of notice as the Commissioner may in his or her case permit.

(3) A Regular Service member shall, whatever the length of his or her pensionable service, retire from the service at midnight on the sixtieth anniversary of his or her birthday:

Provided that, if the Commissioner-General considers that it is desirable in the public interest and that the Regular Force member is medically fit to be retained in the service, he or she may direct that such Regular Service member be permitted to continue to serve in the service for a further period of five years until midnight of the sixty-fifth anniversary of his or her birthday, notwithstanding that the Commissioner-General may, on giving twelve months written notice to the Regular Service member of his or her intention to do so, require him or her to retire before he or she has served that period.

(3a) A Regular Service member who has continued to serve in the service in terms of the proviso to subsection (3) shall retire from his or her employment in the service at midnight on the sixty-fifth anniversary of his or her birthday:

Provided that, if the Minister, in consultation with the Commissioner-General, considers that it is desirable in the public interest and that the Regular Service member is medically fit to be retained in the service, he or she may direct that such Regular Service member be permitted to continue to serve in the service for a further period of five years until midnight of the seventieth anniversary of his or her birthday, notwithstanding that the Minister may, on giving twelve months written notice to the Regular Service member of his or her intention to do so, require him or her to retire before he or she has served that period.

(3b) A Regular Service member who has continued to serve in the service in terms of the proviso to subsection (3a) shall retire from his or her employment in the service on attaining the age of seventy years.

(4) A Regular Service member appointed before the effective date on pensionable terms of service shall have a pensionable age of fifty years unless the member elects to retire at sixty years of age and after such election, any retirement

before the elected pensionable age of sixty shall be deemed to be retirement in terms of subsection (1).";

(c) by the insertion of a new subsection after subsection (6)—

"(7) This section shall not be construed as precluding the Commissioner- General from terminating the employment of any Regular Service member who has failed to perform in his or her duties or is no longer suitable to be in the employ of the Service.".

(2) Despite its expiry on the 30th June, 2025, Statutory Instrument 201 of 2024 is hereby deemed to have operated without interruption to the date of commencement of the Police Amendment Act, 2025.

16 Amendment of section 29A of Cap 11:10

Section 29A of the principal Act is amended in subsection (1)—

(a) by the repeal of paragraph (b);

(b) by the repeal of subparagraph (i) and the substitution of—

"(i) in the case of a trial before the High Court, any punishment to which the member is liable in terms of section 29;".

17 Repeal of 32 of Cap 11:10

Section 32 of the principal Act is repealed.

18 Amendment of section 35 of Cap 11:10

Section 35 ("Procedure at trials under Act") of the principal Act is amended by the insertion of the following subsection after subsection (3)—

"(4) The officer or board of officers as the case may be, presiding at a trial in terms of this Act, shall, if an accused member has been summoned, notified or warned to appear before him, her or it, have power to issue a warrant of arrest against any accused member who fails to appear before such a board or officer without just cause.".

19 Repeal of 46 of Cap 11:10

Section 46 of the principal Act is repealed.

20 Amendment of section 50 of Cap 11:10

Section 50 ("Board of inquiry: procedure where member unsuitable or unfit to remain in Regular Force or to retain his rank, seniority or salary") of the principal Act is amended—

(a) in subsection (1) by the deletion of "A board of inquiry" and the substitution of "Subject to subsection (4), a board of inquiry";

(b) in subsection (4) by the insertion after "who has not completed a probationary period" of the words "or who has failed to complete his or her basic training for any reason, or".

21 Amendment of section 51 of Cap 11:10

Section 51 ("Appeal") of the principal Act is amended—

(a) by the insertion of "(1)" before "A member" and the deletion of everything after "prescribed";

(b) by the insertion of the following subsection (2)—

"(2) An appeal in terms of subsection (1) shall not have the effect of suspending the determination or decision appealed against.".

22 New section inserted in Cap 11: 10

The principal Act is amended by the insertion of the following section after section 55—

"55A Delegation of Police Service Commission's functions

Subject to section 321(2) of the Constitution, the Police Service Commission may from time to time delegate to the Commissioner-General any right, function, power or duty conferred upon it by this Act or any other enactment.".

23 New section inserted in Cap. 11:10

The principal Act is amended by the insertion of the following section after section 61—

"61A Protection of police property

(1) In this section—

"notified mark" means any mark, marks or insignia notified for the purposes of subsection (2).

(2) The Minister may, by notice in a statutory instrument, declare and make known what mark, marks or insignia shall denote that an item on which it appears (including any arms, clothing, equipment, animal, vehicle, aircraft or boat used by the Police Service on duty) is the property of the Police Service.

(3) Any person who—

(a) applies to any arms, clothing, equipment, animal, vehicle, aircraft or boat or other thing whatsoever any notified mark with the intent that it should be mistaken for being the property of the Police Service on duty; or

(b) defaces or conceals any notified mark with the intent that it should be not be identified as being the property of the Police Service; or

(c) without the leave in writing of the Commissioner-General unlawfully receives, possesses, advertises, delivers or otherwise deals with any thing whatsoever bearing the notified mark that is used by the Police Service on duty, including any arms, clothing, equipment, animal, vehicle, aircraft or boat;

shall be guilty of an offence and liable to a fine not exceeding level 6 or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment."

24 Substitution of section 66 in Cap. 11:10

Section 66 of the principal Act is repealed and substituted by—

"66 Wearing of uniforms, badges, etc of Police Service

(1) In this section—

"uniform" means any article or apparel, including a badge, button, braid or insignia worn with any particular items of clothing, designed for the use of the Police Service.

(2) No person shall be in possession of, manufacture, trade, sale, exchange or dispose of or wear any uniform, badge, button, braid or insignia

designed for the Police Service or anything which might reasonably be mistaken for any such uniform, badge, button, braid or insignia unless the person—

(a) is a member of the Police Service entitled by reason of his or her appointment, rank or designation to wear such uniform, badge, button, braid or insignia; and

(b) is a manufacturer or trader of the items in question lawfully contracted by the Police Service to make the items in question on behalf of, or supply or sell them to the Police Service alone;

(c) is an entertainer or agent of an entertainer who is permitted in writing by the Commissioner-General of Police to wear the items in question or avail them to be worn by his or her principals, colleagues, associates or employees on specified occasions and places and for a specified time

(3) Any person who contravenes subsection (2) shall be guilty of an offence and liable to a fine not exceeding level 6 or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.".

25 Amendment of section 67 of Cap 11:10

Section 67 ("Non-liability for acts done under irregular warrant") of the principal Act is amended by the deletion of "other than legal proceedings for unlawful arrest or detention".

26 New section inserted in Cap 11:10

The principal Act is amended by the insertion after section 70 of the following section—

"71 Members of Police Service may be assigned to any part of Zimbabwe

A member of the Police Service shall be deemed to be available for duty at all times and may at any time be assigned by the Commissioner-General to any part of Zimbabwe to perform any function conferred upon or assigned to members of the Police Service by or under this Act.".

27 Amendment of section 72 of Cap 11:10

Section 72 ("Regulations") of the principal Act is amended by the repeal of subsection (1) and the substitution of—

"(1) Subject to this Act and section 223(2) of the Constitution, the Police Service Commission, in consultation with the Commissioner-General and with the approval of Minister, may make regulations providing for all matters which in terms of this Act are required or permitted to be prescribed or which, in his opinion, are necessary or convenient to be prescribed for carrying out or giving effect to this Act.".

28 Amendment of section 11 of Cap. 7:21

(1) Section 11 of the [*Chapter 7:21*] is repealed and substituted by—

"11 Retirement of correctional officers

"(1) Subject to section 10, on giving to the Commissioner-General in writing, at least three months notice of his or her intention to do so or such lesser period of notice as the Commissioner-General may in his or her case permit, a correctional officer may retire from service—

(a) on gratuity when his or her pensionable service amounts to ten years or more; or

(b) if he or she does not exercise his or her right to retire in terms of paragraph (a), on pension, when his or her pensionable service amounts to thirty years or more.

(2) The Commissioner-General may, on notice of twelve months, in writing, require a correctional officer whose pensionable service at the end of such notice will amount to thirty years or more, to retire from service:

Provided that a correctional officer who has been given notice in terms of this subsection may retire at any time before the expiration of that notice on giving to the Commissioner-General, in writing, three months' notice of his or her intention to do so or such lesser period of notice as the Commissioner-General may in his or her case permit.

(3) A correctional officer shall, whatever the length of his or her pensionable service, retire from the service at midnight on the sixtieth anniversary of his or her birthday:

Provided that, if the Commissioner-General considers that it is desirable in the public interest and that the correctional officer is medically fit to be retained in the service, he or she may direct that such correctional officer be permitted to continue to serve in the service for a further period of five year until midnight of the sixty-fifth anniversary of his or her birthday, notwithstanding that the Commissioner-General may, on giving twelve months written notice to the officer of his or her intention to do so, require him or her to retire before he or she has served that period.

(4) A correctional officer who has continued to serve in the service in terms of the proviso to subsection (2) shall retire from his or her employment in the service at midnight on the sixty-fifth anniversary of his or her birthday:

Provided that, if the Minister considers that it is desirable in the public interest and that the correctional officer is medically fit to be retained in the service, he or she may direct that such correctional officer be permitted to continue to serve in the service for a further periods of five years until midnight of the seventieth anniversary of his or her birthday, notwithstanding that the Minister may, on giving twelve months written notice to the officer of his or her intention to do so, require him or her to retire before he or she has served that period.

(5) A correctional officer who has continued to serve in the service in terms of the proviso to subsection (4) shall retire from his or her employment in the service on attaining the age of seventy years.

(6) A correctional officer appointed before the effective date on pensionable terms of service shall have a pensionable age of fifty years unless the member elects to retire at sixty years of age and any retirement before the elected pensionable age of sixty shall be deemed to be retirement in terms of subsection (1).

(7) This section shall not be construed as precluding a correctional officer from resigning from the service in terms of any regulations made in terms of this Act.

(8) This section shall not be construed as precluding the Commissioner-General from terminating the employment of any correctional officer who has failed to perform in his or her duties or is no longer suitable to be in the employ of the service.".

(9) Despite its expiry on the 30th June, 2025, Statutory Instrument 201 of 2024 is hereby deemed to have operated without interruption to the date of commencement of the Police Amendment Act, 2025.

29 Amendment of section 22A of Cap. 9:23

The Criminal Law (Codification and Reform) Act [*Chapter 9:23*] (No. 23 of 2004) is amended in section 22A ("Wilfully injuring the sovereignty and national interest of Zimbabwe") by the deletion from subsection (3) of "intentionally partakes" and the substitution of "actively partakes".

30 Amendment of sections 4 and 9 of Cap. 17:05

The Private Voluntary Organisations Act [*Chapter 17:05*] is amended—

(a) in section 4 ("Functions of Board") by the repeal of paragraph (a) and the substitution of—

"(a) subject to this Act, to consider and approve or not approve every application for registration provisionally approved by the Registrar in terms of section 9 and every provisional cancellation or amendment of a certificate of registration effected by the Registrar in terms of section 10;";

(b) in section 9 ("Registration")*

(i) in subsection (5)*

A. by the repeal of paragraph (a) and the substitution of—

"(a) after considering the application, grant it provisionally, that is to say, recommend it to the Board for final approval subject to such conditions as the Registrar may propose; or"

B. in paragraph (b) by the deletion of the words "reject the application if it appears to him or her that" and the substitution of "reject the application provisionally (that is to say, recommend it to the Board for final rejection) if it appears to the him or her that"

(ii) by the repeal of subsection (6) and the substitution of—

"(6) Where the Board rejects an application for registration wholly or in part, the Registrar shall notify the applicant organisation of the rejection, and inform it of the grounds upon which the rejection was based.".